



INDIRIZZO ITALIANO:
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DEPARTMENT OF THE NAVY
NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND EUROPE AFRICA CENTRAL
PSC 817 BOX 51
FPO AE 09622-0001

J&A# 2407

JUSTIFICATION AND APPROVAL

FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

1. Contracting Activity:
Expeditionary Team, Naval Facilities Engineering Systems Command, Europe, Africa Central Command (NAVFAC EURAFCENT)
2. Description of Action Being Approved:
This justification requests approval permitting other than full and open competition to limit the solicitation N33191-24-R-0012 for the Design Build of the renovation of the [REDACTED].
3. Description of the Supplies/Services:
The project will renovate specific areas of the [REDACTED] that is located in the [REDACTED]. The contract requires all necessary design, construction, inspection and certification to demolish everything within the areas under the scope of work and to reconstruct them in order to provide a renovated and usable space. The Government estimate for this project is \$370,000 and requires 720 days of performance. There are no options for this project.
4. Statutory Authority Permitting Other Than Full and Open Competition:
The statutory authority permitting other than full and open competition is 10 U.S.C. §3204 (a)(1), as implemented by FAR 6.302-1. Only one responsible source and no other supplies or services will satisfy agency requirements. (2) When the supplies or services required by the agency are available from only one responsible source, or, for DoD, NASA, and the Coast Guard, from only one or a limited number of responsible sources, and no other type of supplies or services will satisfy agency requirements, full and open competition need not be provided for.
5. Rationale Justifying the Use of Statutory Authority:
The Office of Defense Cooperation requires a contracting solution that does not involve publication of the solicitation. [REDACTED]. This information will provide the exact location of the American work in [REDACTED], thus putting the NAVFAC project site, contractors, and any other civilians currently utilizing [REDACTED] lives at risk.

For this project, there are four (4) contractors identified by the Office of Defense Cooperation (ODC) as reliable, trusted, and known to conduct business with the U.S. Government. See Enclosure (1). While other companies may have the technical ability to perform the requirements under this solicitation, they have not been vetted by the ODC, whereas the firms identified have

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satisfactory past performance and expertise of working for the U.S. Government. The four contractors are:

[REDACTED]

The enclosed letter (1) from the United States European Command Office of Defense Cooperation, signed by [REDACTED], further reiterates the need to use other than Full and Open competition for this requirement so as to limit publicity regarding the project. [REDACTED]

6. Description of Efforts made to Solicit Offers from as Many Offerors as Practicable:

The proposed contract action would be limited competition to the four (4) known, capable performers identified by EUCOM/Office of Defense Cooperation.

7. Determination of Fair and Reasonable Pricing:

The Contracting Officer will determine that prices received in response to the solicitation are fair and reasonable. In addition, because four (4) potential offerors are expected to submit proposals, price reasonableness can be determined through adequate competition.

8. Actions to Remove Barriers to Future Competition:

[REDACTED] under full and open competition with no limitation of competition requirements.

Encl: (1) [REDACTED] HUMANITARIAN ASSISTANCE (HA) CONTRACTOR
RESTRICTED SOLICITATION, DATED 7 FEB 24

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

CERTIFICATIONS AND APPROVAL SIGNATURE PAGE

I certify the facts and representations under my cognizance that are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

TECHNICAL/REQUIREMENTS COGNIZANCE:

[Redacted Signature] [Redacted Date]

Date

Senior Project Manager
NAVFAC EURAFCENT

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

[Redacted Signature] [Redacted Date]

Date

Associate Counsel
NAVFAC EURAFCENT

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

[Redacted Signature] [Redacted Date]

Contracting Officer
NAVFAC EURAFCENT

ECH IV CHIEF OF CONTRACTING OFFICE APPROVAL

Upon the basis of the above justification, I hereby approve the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 2304(c)(1).

[Redacted Signature] [Redacted Date]

Date

Chief of the Contracting Office
NAVFAC EURAFCENT